

107	Anabi Real Estate Development, LLC vs. DiMaggio, 24-01408901	Defendants Richard A. DiMaggio and Roxanne T. DiMaggio, individually and as Trustees of The DiMaggio Family Trust Dated May 4, 2022 ("DiMaggio Defendants") move for an order expunging three Notices of Pendency of Action filed by plaintiffs Anabi Real Estate Development, LLC, Anabi Oil Corporation, RADC Enterprises, Inc., Rebel Land and Development, LLC, Beck Oil, Inc., S&M Oil Corporation, and Nevada AK, Inc. ("Plaintiffs") and awarding them attorney's fees and costs jointly and severally against Plaintiffs in the amount of \$18,085.00. "A lis pendens—also called a notice of pendency of action—is a document filed with a county recorder that provides constructive notice of a pending lawsuit affecting the real property described in the notice. [Citations.] Any party may record a lis pendens when the lawsuit involves a 'real property claim.' " (<i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 275.) "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc., § 405.30.) "In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc., § 405.31.) " 'Real property claim' means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility." (Code Civ. Proc., § 405.4.) A notice of lis pendens shall also be expunged if the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. (Code Civ. Proc., § 405.32.) Plaintiffs allege that the DiMaggio Defendants obtained money from them through false statements which induced Plaintiffs to enter
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	into contracts and advance significant sums for purposes of performing services, purchasing equipment, materials, and supplies, and paying for fees expenses, and subcontractors. The DiMaggio Defendants abandoned all work before completing Plaintiffs' respective projects and failed to deliver the equipment, supplies, materials, and other items for which they had been paid. Plaintiffs further allege, upon information and belief, that the DiMaggio Defendants misappropriated the funds advanced by Plaintiffs to pay, in whole or in part, for real estate and improvements for their own personal uses and investments. Plaintiffs seek, among other things, a constructive trust for their benefit over properties owned by the DiMaggio Defendants. "A constructive trust is an equitable remedy that compels a wrongdoer—one who has property or proceeds to which he is not justly entitled—to transfer same to its rightful owner." (<i>Shoker</i>, 81 Cal.App.5th at p. 278.) "The case law distinguishes between two subtypes of constructive trust claims. First, there are constructive trust claims that are akin to fraudulent conveyance claims because they seek a constructive trust on real property that was itself wrongfully taken and, if successful on the merits, plaintiffs would regain title to or possession of the same property. On the other hand, there are claims seeking a constructive trust or equitable lien on different property, merely as a means to secure collection of a debt." (<i>Id.</i> at pp. 282-283.) " '[A]llegations of equitable remedies, even if colorable, will not support a lis pendens if, ultimately, those allegations act only as a collateral means to collect money damages.' " (<i>Id.</i> at p. 279.) In <i>Shoker</i>, the plaintiffs alleged that the defendants obtained title to ten rental properties that had been owned by the plaintiffs pursuant to an investment scheme. Because the plaintiffs' causes of action alleged that the properties had been wrongfully acquired via a conspiracy and, if meritorious, they would affect title to that real property, the court held that their claims
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		fell squarely within the plain language of the statute. (Id. at p. 282.) Here, Plaintiffs are not alleging that the DiMaggio Defendants wrongfully obtained any of the real property from Plaintiffs, as the plaintiffs in Shoker alleged. Instead, they are alleging that the DiMaggio Defendants misappropriated funds paid by Plaintiffs for certain services and goods and, upon information and belief, used those funds to pay for some or all of the real property and/or for other personal uses. These allegations demonstrate that Plaintiffs' claims of a constructive trust over the real property is being used merely as a means to secure the collection of debts under the parties' various agreements. If Plaintiffs prevail on their claims, title to the real property would not be affected. Therefore, the Court finds that Plaintiffs' pleading does not include a real property claim. Notably, Plaintiffs do not allege what information has led them to believe that the DiMaggio Defendants misappropriated funds to pay for the real estate. Thus, their allegations made on information and belief are not proper. (<i>Gomes v. Countrywide Home Loans, Inc.</i> (2011) 192 Cal.App.4th 1149, 1158.) Further, even assuming a real property claim exists, on a motion to expunge a lis pendens, it is Plaintiffs' burden to establish by a preponderance of the evidence the probable validity of a real property claim. (Code Civ. Proc., § 405.30.) Plaintiffs have submitted evidence showing when the real properties were acquired by the DiMaggio Defendants and that Plaintiffs paid money for invoices submitted by DiMaggio Maintenance, Inc. for work, materials, and/or equipment that was never delivered. None of this evidence suggests, let alone shows by a preponderance of the evidence, that money received by DiMaggio Maintenance, Inc. was used to purchase the subject real property. Plaintiffs have failed to meet their burden here. In light of all the above, the Motion to Expunge is GRANTED.
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108	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Prior to a hearing on a noticed application for writ of possession, a defendant shall be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and any supporting affidavits. (Code Civ. Proc., § 512.030(a).) If the defendant has not appeared, the notice and other papers must be personally served. (Id., § 512.030(b).) Otherwise, written notice must be given. (Id., § 1005(a)(2).) Here, there is no proof of service showing that Defendant has been served with the summons and complaint, notice of application, or the application and supporting declaration. Thus, the hearing on Plaintiff's application is CONTINUED to June 25, 2026 at 1:30 p.m. The Case Management Conference is also continued to June 25, 2026 at 1:30 p.m.